had granted an annuity of £20 per annum to a physician or surgeon for his counsel and service to the prince, and the King dies, and the prince becomes King, there the service is not discharged, but for the non-feasance of it the annuity shall cease, for the service is to be done in respect of the natural body, which has need of physic and surgery, and it is subject to infirmities and accidents as well after the accession of the estate-royal to it as before, so that the Royal Majesty causes no alteration as to the service in this case. And so is it in other like cases, as to teach the prince grammar, music, &c. where the service to be done has respect meerly to the body natural, and not to the Majesty of the body politic. But here the service appointed to be done by Sir Thomas Wroth was to be done to Edward when he was King, as King, and with respect to his body politic, which includes the body natural, so that by the accession of the estate-royal to the Prince the office and service received an alteration, and became more honourable than it was before, for which reason Sir Thomas Wroth was immediately upon the death of King Henry 8. discharged by law from his service, in which case the averment that he did the service to King Edward 6. all the time that he was King, is of no signification, for it is an averment that he did that which the law did not require him to do. And therefore the opinion of all the Barons was, that he was discharged by law from the service as well all the time when Prince Edward was King, as ever since the death of the same King Edward.

3 *point. King H.* 8. *grants an annuity to one for life, for the exercise of the office of usher of the Privy Chamber to Prince Edward his son, though by the death of King H.* 8. *and by the prince's accession to the Crown, the patentee is discharged by law from doing the service to Edward when King, and by the death of King Edward, from doing the service at all after his death, yet the patentee shall have the annuity not only during the life of King Edward, but after his death as long as the patentee himself lives, for the cause of the non-performance of the service came by the act of God, viz. by the death of King H.* 8. *and the prince's accession to the Crown, and his death, which act of God shall not prejudice the patentee without any default in himself.*—As to the third point, viz. whether Sir Thomas Wroth shall have the annuity paid him all the time after the death of King Henry 8. and of King Edward 6. all the Barons were of opinion, that notwithstanding the service ought not to be done after the death of King Henry 8. but that Sir Thomas Wroth was discharged from it as well when King Edward 6. was King, as after his death, yet Sir Thomas Wroth shall have the annuity always during his life. For such discharge came by the act of God, and not by default of the party, for the death of King Henry 8. and the descent of the estate-royal to the prince, and also the death of King Edward 6. came by the act of God, which deaths were the cause why Sir Thomas Wroth could not do the service, and such act of God shall never hurt the party. (a) For they held, that if an annuity be granted to a counsellor or physician for their lives, *pro consilio suo impendendo* to the grantor, and the grantor dies, the annuity shall not cease, but the grantee shall hold it for term of his life, and yet it was granted and was executory for the counsel, but no counsel could be given to the grantor when he was dead, and therefore the grantee is by the act of God discharged from giving the counsel. So here by the death of King Edward 6. Sir Thomas Wroth was discharged from his service to be done to him from thenceforth, if there had been no other matter to discharge him, but by the descent of the Crown to him before, by which he was raised in dignity and estate, Sir Thomas Wroth, who was appointed to serve him when he was in a lower estate, was from thenceforth discharged from his service during his life, which discharge accrued by the act of God, viz. the death of King Henry 8. and by the descent of the Crown to the prince. (b) But if there had been any default in Sir Thomas Wroth, as if he had withdrawn himself from his service of the prince, when he was prince, or if, in the other cases before, the counsellor or physician grantee of an annuity had refused to give counsel when he was required, there the annuity should cease by the refusal, because the non-performance of the service comes by the default of the grantee, and the grantor has no means to compel him by law to do the service, or to give the counsel, and therefore the annuity shall

(a) S. P. Noy 70. *Warnford* v. *Giles*, 2 Danv. Abr. 59. pl. 9. in margine. Vin. Abr. tit. Condition B. b. pl. 11. II.

(b) S. P. *ante* 134 (g), and see the books there cited.

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cease in judgment of law. And so is the diversity. Wherefore the opinion of the Court was, that Sir Thomas Wroth should have the annuity for his life from the time that the prince became King, notwithstanding that he is discharged by act of law from doing the service, if so be the other point which remains to be discussed does not make against him.

4 *point. King H.* 8. *grants an annuity to one for life, for the exercise of the office of usher of the Privy Chamber to Prince Edward his son, this annuity is not determined by the death of King H.* 8. *but shall bind his successors, although no mention was made of them in the patent, for it was granted in the politic capacity of the King, which never dies. S. P. Jenk.* 209. *pl.* 41. *Vin. Abr. tit. Prerogative Z. d. pl.* 5. *in margine. See Dy.* 92. *pl.* 19.—**[457]** And as to this point, viz. whether the grant of the annuity shall be void by the death of King Henry 8. because his heirs or successors were not mentioned in the grant, all the Barons were of opinion that the grant shall bind the heirs and successors of the King, notwithstanding they were omitted out of the patent, because he granted the annuity as King, and the body politic of the King is charged, which body politic is perpetual, and has perpetual continuance, and never dies, although the body natural, in which the body politic is reposed, dies, as other bodies natural do; for the body politic is a body immortal, and not subject to death, and therefore if he that is King dies, (a) such death is not called in law the death of the King, but the demise of the King, not signifying by the word (*demise*) that the body politic of the King is dead, (for death extinguishes life in every thing it comes to, which it does not with regard to the body politic of the King) but that there is a separation of the two bodies, and that the body politic has left the body natural now dead or now removed from the dignity-Royal, and is conveyed over to, and reposed in, another body natural. And then if the body, which granted the annuity here to Sir Thomas Wroth, is not dead nor extinguished, but continues unchangeably all the life of Sir Thomas Wroth, (as it does here, for the body politic was the body that granted the annuity) there is no manner of cause to determine the annuity. (b) And if an abbot with the assent of the convent, by deed under their common seal, grants an annuity to another in fee, and does not say that he grants it for him and his successors, and the abbot dies, and a new successor is chosen, he shall be charged with the annuity, for the grant of the abbot with the assent of the whole convent charges all the corporation, which has perpetual continuance, and therefore the annuity shall have continuance. So an obligation made by the predecessor with the assent of the convent, without recompense or other cause, shall bind the successors, though they be not named, *causâ qua supra.* (c) But no man's heir shall be charged by the obligation, or grant of annuity, or warranty of his ancestor, unless the heir is expressly mentioned in the obligation, grant, or warranty, because the obligation, &c. came from the body natural, which body natural being dissolved by death, the charge shall also be dissolved, and even if the heirs are mentioned in the obligation, &c. yet they shall not be charged without assets from the same ancestor. But this reason does not hold place where the body that makes the grant or lien has perpetual continuance, as it has in our case, and also assets cannot be said to be wanting in the Crown, (if it was necessary to have assets, as it is not in our case. (d) And note, if the King grants to an abbot a license to purchase in mortmain, and dies, this license shall serve him to purchase in the time of another King, as it appears in the register in the writ of *ad quod damnum*, where there is a special writ in such case, which writ F. N. B. recites in the writ of *ad quod damnum*, and there makes an observation that a license

(a) See *ante* 177 (c), and the books there cited.

(b) Vin. Abr. tit. Annuity B. pl. 3. *in notis.*

(c) Bract. 37. b. Britt. 64. b. M. 2 H. 4. 13. pl. 54. Bro. Annuity 13. H. 21 H. 7. 1. b. Bro. Charge 54. H. 21 H. 7. 4. a. per Frowick, C.J. Bro. Estates 65. Dy. 14. pl. 69. 23. pl. 142. 344. b. pl. 2. 1 Rol. Abr. 226. B. pl. 1. Co. Litt. 144. b. 386. a. Poph. 87. 154. 1 Finch 100. 2 Finch 119. Godolph. Orph. Leg. 201. § 9. Cowel's Inst. 171.

(d) Bro. Prerogative 106. F. N. B. 223. g. Co. Litt. 52. b. 1 Rol. Abr. 332. pl. 6. Lane 74. 102. Palm. 72. Hardr. 444. 1 Freem. 89. 1 Bac. Abr. 204. Vin. Abr. tit. Prerogative, J. c. 3. pl. 5.

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made to an abbot in the time of one King is good to enable him to purchase lands in the time of another King; and this seems to be very reasonable, although the grant was not for the King and his heirs, because the body politic of the King granted it, and it is more than a license, for it is a license and also an interest to purchase an inheritance to the house. (e) But in 2 Ed. 3. in a writ of covenant to levy a fine of a manor which was held of the King *in capite*, the defendant shewed a charter of license granted by King Edward 2. the father of King Edward 3. and there Scrope said, "You are tenant of this manor to the King who now is, wherefore without his license we will not receive the fine." Where, it is to be observed, that the license was only to his tenant to alien, but in the other case of mortmain it is a license and an (f) interest also to acquire an inheritance. (g) And the case in 2 H. 7. was often cited upon motions made in this case, where it appears that King Edward 4. had granted to the Earl of Northumberland the county of Northumberland for term of his life, to have, occupy, and exercise that office, and all other offices belonging to the sheriff in the county aforesaid, rendering for the same to the King and to his heirs annually £100, *without any other account thereof to be rendered or made to the King*, and there it is said that the earl should render an account to the King of common right, because the grant, by which he was discharged from the account, was not binding any longer than for the life of the King who made it, for the words are, *without any account (to us) to be rendered*, and it does not say, *to us and to our heirs*, and this is the King's inheritance, which cannot pass without words of inheritance; (h) as if the King grants a manor to a man and to his heirs, and further says that he and his heirs shall have conusance of all manner of pleas within the precinct of his said manor, out of the King's Courts, and does not make any mention of his heirs or successors, the grantee shall only have conusance during the life of the King; and all this is so reported in the said book of 2 H. 7. And it was said that that case is founded upon good reason, for where a thing is of meer right to be done to the Crown, as it was for the earl to render an account to the King, there if the King says, *without account (to us) to be rendered*, or if the words of discharge be (*against us*), it is not reasonable that it should extend further than the same King, for the thing is perceptible by the Crown, and executory to the Crown, and therefore there ought to be as precise words to discharge the thing against the successor, as against the present King himself. But it is not so with regard to a thing newly granted, which is presently executed, although the thing is executory, as it is here, for if the King grants to a man a fair, market, warren, or the like, and does not say *for himself and his heirs*, yet the grantee shall have it against the heir of the King, and shall justify in a *quo warranto*, for the thing passes presently, and the grant is executed immediately against the Crown, although the thing is executory as to the perception. So here this grant to Sir Thomas **[458]** Wroth was executed presently by the grant against the Crown, and shall bind the heirs and successors of the King, although as to the *a prender* the thing is executory. And so was the opinion of the Court.

And Saunders, Chief Baron, said to me, that a case came lately before him and his companions in the Exchequer, which was thus, viz. King Edward 6. granted by patent a pension to a clerk upon the suppression of a college, whereof he was a member, with a proviso, "that if afterwards he shall be promoted *per nos* to any benefice of as great value, then the pension shall cease," and the said King died, and Queen Mary promoted him to a benefice of as great value as the pension was, and whether or no the pension should cease, was the question; and it was his opinion that the pension should cease, * because the words (if he shall be promoted *per nos*) are spoken by him in his politic

(e) P. 2 Ed. 3. Fitz. Office del Court 29. See T. 3 Ed. 3. 29. pl. 35, where such fine was received upon a writ-close of King Ed. 3. to allow the former letters-patent. See S. P. that a license to the tenant to alien is good only against the King that gave it, Bro. Prerogative 106. Palm. 72. Hardr. 444. Lane 74. 3 Keb. 80.

(f) See Yelv. 15.

(g) M. 2 H. 7. 6. b. Fitz. Grants 33. Bro. Patents 45.

(h) See Bro. Confirmation 28. Vin. Abr. tit. Prerogative, J. c. 3. pl. 2.

* Vin. Abr. tit. Prerogative Z. d. pl. 3. See S. P. *ante* 176 (b), that where an Act says, *the King*, or says, *we*, it is always spoken in the person of him, as King, and in his dignity-Royal, and therefore it includes all his successors.

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